

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA
Richmond Division — Civil Action No. SYN-EDVA-25-CV-0412

LEORA BENTON'S NOTICE OF APPEAL

Filed January 16, 2026.

Notice is given that plaintiff Leora Benton appeals to the United States Court of Appeals for the Fourth Circuit from the final judgment entered December 19, 2025 in favor of defendant Blue Cedar Compliance, Inc. Benton is the only appellant, and Blue Cedar is the appellee. The district action contains one resolved Title VII retaliation claim and no unresolved counterclaim or party.

This notice is filed with the district clerk under Federal Rules of Appellate Procedure 3 and 4. It identifies the court to which the appeal is taken, the party taking the appeal, and the final judgment from which review is sought. Benton requests that the district clerk transmit the notice and docket entries required to open that appeal. She does not request a stay of the judgment, and no post-judgment motion affecting the time to appeal has been filed.

Judgments and orders identified

Benton identifies the December 19 final judgment and the memorandum opinion granting Blue Cedar's summary-judgment motion. She also identifies the December 1 order excluding the materially new portion of Tessa Wynn's declaration under Rules 26 and 37, together with earlier rulings embodied in or antecedent to the final judgment. This identification is intended to give clear notice of the rulings challenged and does not divide the single civil action into separate appeals.

The merits challenge concerns whether the admitted evidence, viewed in Benton's favor, permitted a reasonable finding of pretext and but-for retaliation. The evidentiary challenge concerns only the narrow use restriction described in the December 1 order; timely disclosed Wynn comparator testimony was not excluded. This notice states the objects of the appeal without presenting appellate argument. Benton reserves the issues and relief available under the governing rules and will identify record citations and authorities in her briefs. The notice does not challenge any cost determination because no bill of costs has been resolved.

Filing and certificate of service

This notice is signed and filed electronically on Friday, January 16, 2026. The district judgment was entered Friday, December 19, 2025. The civil docket records no motion under Rules 50, 52, 54, 59, or 60 that altered the notice period before this filing. Counsel has provided the originating docket number, the December 19 judgment date, the appealing party, and the destination court in the electronic filing fields accompanying this notice.

I certify that on January 16, 2026 the court's electronic filing system served this notice on counsel of record for Blue Cedar Compliance, Inc. The service record identifies the filing time, recipient account, and successful delivery status. A copy was provided to Benton for her file. Counsel for Benton requests electronic notices at the address registered in this action and will promptly advise both clerks of any change. The signature below is made by Benton's counsel with authority to file the appeal. No paper recipient or unrepresented party requires separate service.

Respectfully submitted,

Counsel for Leora Benton